

**ELIZABETH II**



**1984 CHAPTER xxii**

An Act to make further provision in regard to the cattle market of the Aylesbury Vale District Council held in the former borough of Aylesbury; and for purposes connected therewith. [31st July 1984]

**WHEREAS—**

(1) The Aylesbury Vale District in the county of Buckinghamshire is a district under the management and local government of the Aylesbury Vale District Council (in this Act called “the Council”):

(2) By virtue of certain enactments the Council are the owners of a market undertaking in the former borough of Aylesbury as it existed immediately before 1st April 1974 and may be required to hold and maintain a cattle market as part of such market undertaking:

(3) It is expedient to relieve the Council from any obligations that may exist relating to such cattle market:

(4) It is expedient that the other provisions contained in this Act be enacted:



(5) The purposes of this Act cannot be effected without the authority of Parliament:

1972 c. 70. (6) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows, that is to say:—

Short title. 1. This Act may be cited as the Aylesbury Vale District Council Act 1984.

Interpretation. 2. In this Act—  
 “Aylesbury” means the former borough of Aylesbury as it existed immediately before 1st April 1974;  
 “the Council” means the Aylesbury Vale District Council;  
 “environs” in relation to Aylesbury means the area adjoining Aylesbury that is within seven miles of the clock tower in Market Square, Aylesbury.

Removal of obligations in respect of cattle market. 3.—(1) The Council shall subject to the provisions of this section be relieved from all or any obligations (statutory or otherwise) to hold or maintain or, as a market authority or market owner to provide space for, a market for cattle or other livestock in Aylesbury or its environs and may appropriate to other purposes or dispose of, any property which has been used for the purpose of such market.

(2) (a) The Council shall not in exercise of their powers under this section cease to hold or maintain or to provide space for a market for cattle or other livestock in Aylesbury or its environs unless they are satisfied that adequate alternative facilities for the users of that market are available elsewhere, whether within or outside the district of Aylesbury Vale and without having first published notice under this subsection—

(i) by advertisement in one or more local newspapers circulating in Aylesbury in each of two successive weeks; and

(ii) by affixing it in a conspicuous position at or near the place where the market for cattle is held.

(b) A notice under this subsection shall specify the latest date, not being less than 28 days after the first publication of the



notice, on which the Council intend to provide space for a market for cattle or other livestock to be held in Aylesbury or its environs, and the place where alternative facilities for users of the market are, or will by that date be, available.

(c) Either—

- (i) a copy of any such newspaper containing any such notice; or
- (ii) a photostatic or other reproduction certified by the chief executive and clerk of the Council to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

(d) If the Council cease to hold or maintain or to provide space for a market for cattle or other livestock in Aylesbury or its environs in exercise of their powers under this section such action shall not be questioned in any legal proceedings whatever unless those proceedings are commenced within 8 weeks from the date on which notice under this subsection was first published.

4.—(1) The Council may, from time to time, resolve not to establish, acquire or, as market authority or market owner provide space for, a market for the sale of livestock or any type of livestock in Aylesbury or its environs for such period, not being more than 10 years from the date of the passing of the resolution, as the Council may determine.

Restriction on re-establishment of cattle market.

(2) A resolution under this section shall be binding on the Council.

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